

Ku. Durgesh Nandani vs Neelam Sharma on 14 January, 2026

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2026:CGHC:2241-DB

The date when the judgment is reserved	The date when the judgment is pronounced	The date when the judgment is uploaded on the website	
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HIGH COURT OF CHHATTISGARH AT BILASPUR

Judgment reserved on: 17.10.2025
Judgment delivered on: 14.01.2026

FA(MAT) No. 25 of 2019

1 - Ku. Durgesh Nandani, D/o Brajmohan Duwa, Aged About 44 Years,
R/o Link Road Infront of Bukhari Petrol Pump Bilaspur Chhattisgarh.

2 - Smt. Santoshi Jangde, D/o Brajmohan Duwa, Aged About 38 Years,
W/o Venkat Ramn, R/o Village Chhatandanapur, Post And Tahsil
Mungeli, District Mungeli Chhattisgarh.

3 - (Deleted) Smt. Chandrakali As Per The Hon'ble Court Order Dated
20-06-2022.

... Appellants

versus

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1 - Neelam Sharma, Daughter of Late Brijmohan Dua and Wife of Shri

Rajendra Sharma, Aged About 42 Years, Resident of Gondpara, Beside
Agrawal Saw Mill, Bilaspur, District - Bilaspur, Chhattisgarh. (As Per
Hon'ble Court Order Dated 06/05/2023 And 14/08/2023).

2 - Smt. Krishna Duwa, D/o Late Sitaram Duwa, W/o Late Govind
Mahendra, Aged About 68 Years, R/o Infront of Bukhari Petrol Pump,
Link Road, Bilaspur, Tahsil And District Bilaspur, Chhattisgarh.

... Respondent(s)

For Appellants : Mr. B.P. Sharma along with Mr. K.N. Singh, Advocate For Respondent No.1 : Mr. H. V. Sharma, Advocate For Respondent No.2 : Mr. Sandeep Jha along with Ms. Gunjan Tiwari, Advocate Hon'ble Smt. Justice Rajani Dubey Hon'ble Shri Justice Amitendra Kishore Prasad CAV Judgment Per Rajani Dubey, Judge

1. The present appeal has been preferred by the appellants against the judgment and decree dated 29.07.2019 passed by the learned Family Court, Bilaspur in Civil Suit No. 331-A/2019 whereby the suit instituted by the appellants/plaintiffs seeking a declaration of paternity against the defendant Brajmohan Duwa, was dismissed. For the sake of convenience, the parties shall hereinafter be referred to in accordance with their respective status before the learned Family Court.

2. As pleaded in the plaint, it was averred that plaintiff No. 3, Chandrakali was married at the age of about 12-13 years to Atmaprakash who was approximately 16 years old at the time of marriage. From the inception of the marriage, Atmaprakash adopted a neglectful and indifferent attitude towards plaintiff No. 3, Chandrakali, and her family and led a detached life akin to that of a sanyasi, being inclined towards spiritual pursuits. In the year 1984, Atmaprakash deserted plaintiff No. 3 and the family, renounced worldly life by embracing asceticism and departed to an unknown place; since then, his whereabouts have remained untraced till date. It is further pleaded that during the period when Atmaprakash was residing in the matrimonial home, the defendant used to visit the house of plaintiff No. 3, and during such visits an intimate relationship developed between the defendant and plaintiff No. 3. As a result of the said relationship, plaintiff Nos. 1 and 2 were born to plaintiff No. 3 and the defendant. However, despite the aforesaid facts, from that time onwards, the name of Atmaprakash continued to be recorded as the husband of plaintiff No. 3 and the father of plaintiff Nos. 1 and 2 in the relevant records.

The plaintiffs further averred that the defendant was considered unmarried in the eyes of society. In the year 1971, the defendant came into close association with plaintiff No. 3, Chandrakali, and thereafter they started cohabiting in the nature of husband and wife. Since 1971, the defendant has been residing on Link Road. It was pleaded that the defendant, being a wealthy and respected person of the city, did not publicly acknowledge plaintiff No. 3 as his wife in order to safeguard his social reputation. At the relevant time, inter-caste relationships were socially frowned upon and not accepted; therefore, out of fear of social stigma, the defendant refrained from conferring the status

of wife upon plaintiff No. 3. Nevertheless, it was asserted that plaintiff No. 3 and the defendant have been living together continuously since 1971 and were treated as husband and wife by all concerned.

It was further pleaded that from the relationship between the defendant and plaintiff No. 3, plaintiff Nos. 1 and 2 were born, whose upbringing, maintenance and welfare were continuously taken care of by the defendant. Plaintiff No. 1 is unmarried and plaintiff No. 2 contracted a love marriage, in which the defendant extended full support and cooperation. It was alleged that the plaintiffs repeatedly requested the defendant to acknowledge plaintiff Nos. 1 and 2 as his daughters and plaintiff No. 3 as his wife and to confer legal status upon them; however, the defendant merely kept assuring them without formal recognition. Consequently, the plaintiffs prayed that plaintiff Nos. 1 and 2 be declared the daughters of the defendant and plaintiff No. 3 be declared his legally wedded wife.

3. In the written statement, the defendant stated that considering his advanced age, he does not desire any dispute and wishes to live the remainder of his life peacefully. The defendant expressed his willingness to accept all the claims made by the plaintiffs and stated that he has no objection to the grant of the reliefs sought. Accordingly, the defendant prayed that the suit be decided by allowing the plaintiffs' claims.

4. On the basis of pleadings made by both the parties, learned Family Court framed the issues and after appreciating oral and documentary evidence, by its judgment and decree dated 29.07.2019 dismissed the application filed by the plaintiffs. Hence, this appeal.

5. Learned counsel for the appellants submit that the impugned judgment and decree dated 29.07.2019 are bad in law, being illegal, perverse, arbitrary, unreasonable, unwarranted, unjust and mala fide and are therefore liable to be set aside. It is further submitted that the learned Family Court failed to appreciate that the defendant had categorically admitted the entire claim of the appellants and in view of such admission, nothing further remained to be proved by the appellants. The learned Family Court also erred in ignoring the mandate of Section 58 of the Indian Evidence Act, which provides that facts admitted need not be proved. In the present case, since the defendant admitted the entire claim of the appellants, the insistence on further proof was wholly unwarranted.

It is further submitted that even assuming for the sake of argument that the marriage between appellant No.3 and the respondent was not valid, the learned Family Court could not have curtailed or denied the legal entitlement and maintenance rights of appellant Nos.1 and 2.

Lastly, the learned Family Court failed to consider that there has been no trace or information regarding Atmaprakash for several years. In such circumstances, a presumption of death ought to have been drawn in accordance with the provisions of the Indian Evidence Act.

In view of the aforesaid facts and circumstances, the appellants humbly submit that the impugned judgment and decree deserve to be quashed and set aside and the appeal be allowed in the interest of justice.

6. Learned counsel for respondent No.1 submits that respondent No.1 is the legal heir of late Brajmohan Duwa and that she has filed Civil Suit No. 80A/2019, which is pending adjudication before the learned District Court.

7. Learned counsel for respondent No.2 supports the impugned judgment and submits that the learned Trial Court has minutely appreciated the oral as well as documentary evidence available on record and has rightly dismissed the suit filed by the appellants. It is contended that plaintiff No.3, Chandrakali, was married to another person in the year 1960 and plaintiffs No.1 and 2 were born during the subsistence of the said marriage; therefore, they are not entitled to any declaration of paternity as they cannot be treated as the daughters of late Brajmohan Duwa in view of Section 112 of the Evidence Act. It is further submitted that the present suit was filed by the appellants/plaintiffs against late Brajmohan Duwa with an intention to claim his property. The present litigation is not a simplicitor suit for declaration of paternity, rather it involves several disputes and questions relating to property. The learned Trial Court has passed the impugned judgment after due consideration of the facts and circumstances of the case and in accordance with settled principles of law; hence, the judgment is well-reasoned and does not call for any interference by this Court.

Reliance has been placed on the judgment dated 28.01.2025 passed by the Hon'ble Supreme Court in Ivan Rathinam Vs. Milan Joseph in Criminal Appeal No. 413 of 2025, the order dated 19.04.2024 passed in Transfer Petition (C) No. 2043 of 2023 (Dolly Rani Vs. Manish Kumar Chanchal), and the order dated 07.02.2022 passed by this Court in WP No. 245 of 2021 (Smt. Neelam Sharma Vs. Brijmohan Dua and others).

8. Heard counsel for the parties and perused the material placed on record.

9. It is evident from the record of the learned Trial Court that plaintiffs Durgesh Nandani and Smt. Santoshi Jangde along with late Smt. Chandrakali, filed a civil suit against Brajmohan Duwa, which was registered as Civil Suit No. 331-A/2019, seeking a declaration of paternity on the ground that plaintiffs No.1 and 2 are the daughters of Brajmohan Duwa and that plaintiff No.3, Chandrakali, be declared the legally wedded wife of Brajmohan Duwa.

10. Late Brajmohan Duwa also filed his written statement on the same day, i.e., on 16.05.2019, when the suit was registered, wherein he admitted the allegations made by the plaintiffs and prayed that the suit be decreed in their favour.

11. On the basis of the pleadings of both the parties, the learned Trial Court framed the following issues, which read as under:-

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12. After appreciating the oral as well as documentary evidence on record, the learned Trial Court dismissed the suit filed by the plaintiffs on the ground that Chandrakali was the legally wedded wife of Atmaprakash, that he was not impleaded as a party to the suit, and that in all legal documents Atmaprakash was shown as the father of plaintiffs No.1 and 2.

13. Learned counsel for the appellants vehemently submits that since late Brajmohan Duwa himself admitted before the learned Trial Court that he was in a relationship with Chandrakali and that appellant Nos.1 and 2 are his daughters, and further admitted all the allegations in his written statement, the learned Trial Court erred in dismissing the suit filed by the plaintiffs.

14. The plaintiffs/appellants pleaded before the learned Trial Court that Chandrakali was married to Atmaprakash, who left the matrimonial home in the year 1984 and whose whereabouts thereafter are not known, nor is it known whether he is alive or dead. It was further pleaded that Chandrakali and Brajmohan Duwa thereafter lived together as husband and wife and from their relationship, Durgesh Nandani and Smt. Santoshi Jangde were born.

15. In the matter of Ivan Rathinam (supra), Hon'ble Apex Court held in paras 27, 28, 29 and 32 as under:-

"27. Before delving into the analysis, it is pertinent to elucidate Section 112 of the Indian Evidence Act, 1872:

"112. Birth during marriage, conclusive proof of legitimacy. The fact that any person was born during the continuance of a valid marriage between his mother and any man, or within two hundred and eighty days after its dissolution, the mother remaining unmarried, shall be conclusive proof that he is the legitimate son of that man, unless it can be shown that the parties to the marriage had no access to each other at any time when he could have been begotten."

28. The language of the provision makes it abundantly clear that there exists a strong presumption that the husband is the father of the child borne by his wife during the subsistence of their marriage. This section provides that conclusive proof of legitimacy is equivalent to paternity {Aparna Ajinkya

Firodia, supra note 3}. The object of this principle is to prevent any unwarranted enquiry into the parentage of a child. Since the presumption is in favour of legitimacy, the burden is cast upon the person who asserts illegitimacy to prove it only through 'non-access.'

29. It is well-established that access and non-access under Section 112 do not require a party to prove beyond reasonable doubt that they had or did not have sexual intercourse at the time the child could have been begotten. 'Access' merely refers to the possibility of an opportunity for marital relations {Mir Muzafaruddin Khan v. Syed Arifuddin Khan, (1971) 3 SCC 810, para 6; Chilukuri Venkateswarlu v. Chilukuri Venkatanarayana, (1953) 2 SCC 627, para 4}. To put it more simply, in such a scenario, while parties may be on non-speaking terms, engaging in extra-marital affairs, or residing in different houses in the same village, it does not necessarily preclude the possibility of the spouses having an opportunity to engage in marital relations {Banarsi Dass v. Teeku Dutta, (2005) 4 SCC 449; Kamti Devi, supra note 2}. Non-access means the impossibility, not merely inability, of the spouses to have marital relations with each other {Aparna Ajinkya Firodia, supra note 3; Sham Lal v. Sanjeev Kumar, (2009) 12 SCC 454}. For a person to rebut the presumption of legitimacy, they must first assert non-access which, in turn, must be substantiated by evidence.

32. In the case at hand, it is an admitted fact that when the Respondent was begotten in 2001, his mother and Mr. Raju Kurian were married. In fact, they had been married since 1989 and neither had ever questioned the validity of the marriage. They were, admittedly, living under the same roof from 1989 till 2003, when they decided to separate. It is, but obvious, that the Respondent's mother and Mr. Raju Kurian had access to each other throughout their marriage. This conclusion has been arrived at through concurrent findings of all the courts involved, at multiple stages of litigation. Even if it is assumed that the Respondent's mother had relations with the Appellant during her marriage and especially when the Respondent was begotten, such a fact per se, would not be sufficient to displace the presumption of legitimacy. The only thing that such an allegation sheds light on is the fact that there seems to have been simultaneous access with the Respondent's mother, by the Appellant and Mr. Raju Kurian. What, however, needs to be clarified is that an 'additional' access or 'multiple' access does not automatically negate the access between the spouses and prove non-access thereof. Consequently, there is a statutory mandate that the Respondent must be presumed to be the son of Mr. Raju Kurian."

16. Further in the matter of Dolly Rani (supra), Hon'ble Apex Court held as under:-

"Section 7 of the Act reads as under:

"7. Ceremonies for a Hindu marriage.-(1) A Hindu marriage may be solemnized in accordance with the customary rites and ceremonies of either party thereto (2) Where such rites and ceremonies include the Saptapadi (that is, the taking of seven steps by the bridegroom and the bride jointly before the sacred fire), the marriage becomes complete and binding when the seventh step is taken."

Section 7 of the Act speaks about ceremonies of a Hindu marriage. Sub-section (1) uses the word "solemnised". The word "solemnised" means to perform the marriage with ceremonies in proper

form. Unless and until the marriage is performed with appropriate ceremonies and in due form, it cannot be said to be "solemnised". Further, sub-section (2) of Section 7 states that where such rites and ceremonies include the saptapadi, i.e. the taking of seven steps by the bridegroom and the bride jointly before the sacred fire, the marriage becomes complete and binding when the seventh step is taken. Therefore, requisite ceremonies for the solemnisation of the Hindu marriage must be in accordance with the applicable customs or usage and where saptapadi has been adopted, the marriage becomes complete and binding when the seventh step is taken. Where a Hindu marriage is not performed in accordance with the applicable rites or ceremonies such as saptapadi when included, the marriage will not be construed as a Hindu marriage. In other words, for a valid marriage under the Act, the requisite ceremonies have to be performed and there must be proof of performance of the said ceremony when an issue/controversy arises. Unless the parties have undergone such ceremony, there would be no Hindu marriage according to Section 7 of the Act and a mere issuance of a certificate by an entity in the absence of the requisite ceremonies having been performed, would neither confirm any marital status to the parties nor establish a marriage under Hindu law."

17. Further it is held as under:-

"The Hindu Marriage Act, 1955 solemnly acknowledges both the material and spiritual aspects of this event in the married couple's lives. Besides providing a mechanism for registration of marriages in order to confer the status of a married couple and acknowledge rights in personam and rights in rem, a special place is given to rites and ceremonies in the Act. It follows that the critical conditions for the solemnizing of a Hindu marriage should be assiduously, strictly and followed. This is for the reason that the genesis of a sacred religious process cannot be a trivial affair. The sincere conduct of and participation in the customary rites and ceremonies under Section 7 of the Hindu Marriage Act, 1955 ought to be ensured by all married couples and priests who preside over the ceremony.

The promises made to each by the parties to a Hindu marriage and the oath taken by them to remain friends forever lay the foundation for a life-long commitment between the spouses which should be realized by them. If such commitment to each other is adhered to by the couple, then there would be far fewer cases of breakdown of marriages leading to divorce or separation.

But in the instant case, the above parameters have not been followed by the parties herein. In the circumstances, we declare that the 'marriage dated 07.07.2021 between the parties is not a 'Hindu marriage' having regard to the provisions of Section 7 of the Act. Consequently, the certificate issued by the Vadik Jankalyan Samiti (Regd) dated 07.07.2021 is declared null and void. In view of the above the Certificate issued under the Uttar Pradesh Registration Rules, 2017 dated 07.07.2021 is also declared null and void. In view of the aforesaid declaration, it is further declared that the petitioner and the respondent were not married in accordance with the provisions of the Act and therefore, they have never acquired the status of husband and wife."

18. Plaintiff No.1- Durgesh Nandani and Plaintiff No.3- Chandrakali filed their affidavits under Order 18 Rule 4 of the Code of Civil Procedure before the learned Trial Court in support of the plaint. Brajmohan Duwa also filed his affidavit under Order 18 Rule 4 of the Code of Civil Procedure.

19. In his written statement as well as in his affidavit, Brajmohan Duwa admitted that he had been in a relationship with Chandrakali since the year 1971 and that Plaintiffs No. 1 and 2 are his daughters; however, due to fear of social stigma, he refrained from conferring the status of wife upon Plaintiff No. 3.

20. Learned trial Court vide its judgment dated 29.07.2019 held in paras from 11 to 14 as under:-

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22. The learned Trial Court has rightly taken note of the fact that Atmaprakash was neither impleaded as a party nor was his civil status clarified, despite his name being reflected as the husband/father in official documents, including Aadhaar Cards (Ex.A/1 and Ex.A/2). The statutory presumption under Section 112 of the Indian Evidence Act was correctly applied, particularly in view of the admitted cohabitation of Chandrakali with Atmaprakash during the relevant period when plaintiffs No.1 and 2 were born.

24. This Court also finds substance in the conclusion of the learned Trial Court that the circumstances surrounding the filing of the written statement and affidavit by Brajmohan Duwa on the very day of institution of the suit, without issuance of notice, further weakens the plaintiffs' case and does not inspire judicial confidence.

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26. The learned Trial Court has meticulously analyzed the evidence, correctly applied the relevant statutory provisions and arrived at findings which are neither perverse nor illegal. The judgment impugned is well-reasoned, based on proper appreciation of facts and law and does not warrant interference by this Court in appellate jurisdiction.

27. Accordingly, the appeal is devoid of merit and is hereby dismissed.

28. Let a decree be drawn up accordingly.

Sd/-

(Rajani Dubey)
Judge

Sd/-

(Amitendra Kishore Prasad)
Judge

Ruchi

RUCHI YADAV Digitally signed
by RUCHI YADAV